GAHC020006472025 2026:GAU-NL:581-DB

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)
KOHIMA BENCH

Case No. : WA/30/2025

SMTI. ALILA IMSONG
D/O LT. B. LANU, LANDMARK COLONY, DIMAPUR, NAGALAND-797112

VERSUS

STATE OF NAGALAND AND 4 ORS
REPRESENTED BY THE CHIEF SECRETARY TO THE GOVT. OF NAGALAND, KOHIMA-797001

2:THE COMMISSIONER AND SECRETARY
DEPARTMENT OF SCHOOL EDUCATION
NAGALAND KOHIMA-797001

3:THE PRINCIPAL DIRECTOR
DIRECTORATE OF SCHOOL EDUCATION
NAGALAND KOHIMA-797121

4:THE REGISTRAR
DIGBOI B.ED COLLEGE
DIBRUGARH UNIVERSITY
ASSAM-798171

5:THE CONTROLLER OF EXAMINATION
DIGBOI B
ED COLLEGE
DIBRUGARH UNIVERSITY ASSAM-78617

Advocate for the Petitioner : C. T. JAMIR, SR. ADV, I IMCHEN,ALIBA OZUKUM,ASA RUTSA,TOSHI JAMIR,KROVI TSUKRU,NUNGSANG AIER,IMTILA PONGEN,JAWAMONG YADEN,O TEMJEN JAMIR

Advocate for the Respondent : GOVT ADV NL,

Linked Case : I.A.(Civil)/180/2025

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Advocate for : C. T. JAMIR
SR. ADV
Advocate for : GOVT ADV NL appearing for STATE OF NAGALAND AND 4 ORS

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BEFORE
HON'BLE MRS. JUSTICE YARENJUNGLA LONGKUMER
HON'BLE MRS. JUSTICE HELEN DAWNGLIANI

Advocate for the Petitioner	: Mr. C.T. Jamir, Sr. Adv Mr. I. Imchen Ms. Lhousino
Advocate for the Respondents	: Mr. N. Angami, Sr.Govt. Advocate
Date on which judgment is reserved	: 14.10.2026
Date of pronouncement of judgment	: 30.10.2026
Whether the pronouncement is of the Operative part of the judgment ?	: No
Whether full judgment has been pronounced ?	: Yes

BEFORE
HON'BLE MRS. JUSTICE YARENJUNGLA LONGKUMER
HON'BLE MRS. JUSTICE HELEN DAWNGLIANI

JUDGMENT & ORDER (CAV)

28.10.2026

(Y. Longkumer,J)

By filing the instant intra Court appeal, the appellant has assailed the impugned judgment and order dated 09.09.2025 passed in WP(C) 251/2022,WP(C)259/2022,WP(C) 262/2022, WP(C) 114/2022, WP(C) 253/2022, WP(C) 252/2022, WP(C) 254/2022, WP(C) 263/2022, WP(C) 265/2022, WP(C) 255/2022, WP(C) 260/2022, WP(C) 261/2022 & WP(C) 264/2022.

2. Heard the learned Sr.counsel for the petitioner Mr. C.T. Jamir assisted by I.Imchen. Also heard the learned Sr. Government Advocate Mr. N. Angami appearing for the State respondents.

3. At the outset, learned counsel for the parties have submitted that this case is squarely covered by the judgment and order dated 27.10.2026 passed in W.A.33/2025, W.A 34/2025, W.A.35/2025, W.A 36/2025, W.A.37/2025, W.A 38/2025, and W.A.14/2026, and have prayed that a similar order may be passed in the instant case.

4. In view of the submission made by the learned counsel for the parties, the instant writ appeal is disposed of with the following directions:

(i) The impugned judgment dated 09.09.2025, is quashed and set aside.

(ii) The impugned order of dismissal of the appellant dated 08.06.2022, is quashed and set aside.

(iii) The matter is remitted to the disciplinary authority for proceeding afresh in accordance with law.

5. The disciplinary authority shall take up the proceeding afresh in accordance with law from the stage at which the proceedings stood vitiated, after affording the appellant a reasonable opportunity of being heard and to defend herself in accordance with the rules.

6. The reinstatement is solely for the purpose of holding the fresh enquiry from the stage where the defect arose and nothing more. The appellant/petitioner will to be treated as under suspension pending the inquiry and will be paid the subsistence allowance as per Rules. The

consequential benefits will depend on the outcome of the proceedings. The disciplinary proceedings shall be concluded expeditiously, preferably within a period of 6 (six) months from the date of receipt of a certified copy of this judgment.

7. It is clarified that we are not expressing any opinion on the merits of the charges, which shall be determined independently by the competent authority in accordance with law.

8. The writ appeal is disposed of.

9. No orders as to cost.

JUDGE **JUDGE**

Comparing Assistant

Kiyazhatuou Chase

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Date: 2026.10.30 11:30:02 +05'30'